

CIVIL AVIATION SAFETY REGULATIONS 1998 - REG 91.650 Flight recorders--preserving recordings of immediately reportable matters

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Flight recorders--preserving recordings of immediately reportable matters

(1) The operator of an aircraft for a flight contravenes this subregulation if:

(a) the aircraft is fitted with an operative flight data recorder, operative cockpit voice recorder or operative combination recorder; and

(b) an immediately reportable matter occurs in relation to the aircraft; and

(c) the requirement mentioned in subregulation (2) is not met.

(2) The requirement is that recordings from the flight data recorder, cockpit voice recorder and combination recorder related to the occurrence of the matter, and the recorders, are preserved:

(a) if the Australian Transport Safety Bureau notifies the operator, within 72 hours of the matter being reported to the Australian Transport Safety Bureau under section 18 of the *Transport Safety Investigation Act 2003* :

(i) that the operator is not required to preserve the recordings and recorders--until the time of that notification; or

(ii) that the operator is required to preserve the recordings and recorders for a certain period--until the end of that period; or

(iii) that the operator is required to preserve the recordings for a certain period but is not required to preserve the recorders--until the end of that period for the recordings, and until the time of that notification for the recorders; or

(b) in any other case--until 72 hours after the matter is reported to the Australian Transport Safety Bureau under section 18 of the *Transport Safety Investigation Act 2003* .

(3) Subregulation (1) does not apply if:

(a) the recordings or recorders are not preserved; and

(b) the operator took reasonable steps in the circumstances to preserve the recordings or recorders.

(4) A person commits an offence of strict liability if the person contravenes subregulation (1).

Penalty: 50 penalty units.

Note: A defendant bears an evidential burden in relation to the matters in subregulation (3): see subsection 13.3(3) of the *Criminal Code* .